

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Helen Terndrup	Team: Team # 7	CCRB Case #: 200915438	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 10/02/2009 12:15 PM	Location of Incident: Clifton Place and Marcy Avenue	18 Mo. SOL 4/2/2011	Precinct: 79		
Date/Time CV Reported Fri, 10/02/2009 12:27 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 10/02/2009 12:27 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Joseph Kazlas	07769	941991	079 PCT
2. SGT Erik Worobey	02712	932229	079 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Erik Worobey	Abuse: Sgt. Erik Worobey questioned § 87(2)(b)	A . Exonerated
B . SGT Erik Worobey	Abuse: Sgt. Erik Worobey searched § 87(2)(b)	B . Unsubstantiated
C . POM Joseph Kazlas	Abuse: PO Joseph Kazlas searched § 87(2)(b)	C . Unsubstantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

§ 87(2)(b) called the CCRB at 12:27 p.m. on Friday, October 2, 2009, to file this complaint. § 87(2)(b) alleged that at approximately 12:00 p.m. that day, he was walking near Clifton Place and Marcy Avenue in Brooklyn when Sgt. Erik Worobey of the 79th Precinct asked him if he had any identification (**Allegation A**). Sgt. Worobey and PO Joseph Kazlas told § 87(2)(b) that they had observed him behind a NYCHA building. § 87(2)(b) denied this. Sgt. Worobey and PO Kazlas allegedly searched § 87(2)(b) (**Allegations B and C**). The following allegations resulted:

Allegation A) Abuse of Authority: Sgt. Erik Worobey questioned § 87(2)(b) § 87(2)(g)

§ 87(2)(b) § 87(2)(g)
§ 87(2)(b) § 87(2)(g)
§ 87(2)(b) § 87(2)(g)
§ 87(2)(b) § 87(2)(g).

Allegation B) Abuse of Authority: Sgt. Erik Worobey searched § 87(2)(b) § 87(2)(g)

§ 87(2)(b) § 87(2)(g)
§ 87(2)(b) § 87(2)(g)

Allegation C) Abuse of Authority: PO Joseph Kazlas searched § 87(2)(b) § 87(2)(g)

§ 87(2)(b) § 87(2)(g)
§ 87(2)(b) § 87(2)(g)
§ 87(2)(g), § 87(4-b) § 87(2)(g)
§ 87(2)(b) § 87(2)(g)
§ 87(2)(b) § 87(2)(g)
§ 87(2)(b) § 87(2)(g)

§ 87(2)(b) rejected Mediation of his complaint. § 87(2)(b) § 87(2)(b).

Results of Investigation

Civilian Statement

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b) black male who has brown eyes and black hair. He is § 87(2)(b) and weighs about § 87(2)(b).

§ 87(2)(b) provided his first statement by phone on October 2, 2009 (encl. 5A). On October 19, 2009, § 87(2)(b) was interviewed at the CCRB (encl. 6A-D). § 87(2)(g) § 87(2)(g)

On October 2, 2009, at 12:00 p.m., § 87(2)(b) was walking near Herbert Von King Park in Brooklyn. § 87(2)(b) walked out of the entrance to the park, near the corner of Marcy Avenue and Clifton Place. He spoke to two or three people—whose names he did not know—and then crossed the street. § 87(2)(b) was preparing to return back across Marcy Avenue again when a marked police van with RMP #8561 drove up Marcy Avenue. The van allowed § 87(2)(b) to cross, and then the officer in the passenger seat called out to § 87(2)(b). § 87(2)(b)

identified this officer as PO Kazlas, but the investigation determined that this officer was Sgt. Worobey).

Sgt. Worobey asked § 87(2)(b) if he had any identification. § 87(2)(b) provided his identification. Both officers exited their van and approached § 87(2)(b). § 87(2)(b) asked why the officer had requested his identification. Sgt. Worobey stated that he had seen § 87(2)(b) “loitering in the back of a project.” § 87(2)(b) denied this. The officers ran a warrant check on § 87(2)(b)’s name. The officers told him to put his hands in the air and then both Sgt. Worobey and PO Kazlas searched § 87(2)(b) by reaching into his pockets and removing the items inside. § 87(2)(b) had in his pockets his wallet, some loose cash, and a few other small items. The officers then returned the items to his pockets and allowed him to leave. He obtained their names by asking them for them. The officers each told him their names, and he also read the names from their shields. § 87(2)(b) stated that a bystander who he did not know told him to “calm down” during the incident because he was so angry. § 87(2)(b) did not know of any witnesses.

NYPD Statements:

Subject Officer: SGT. ERIK WOROBEY

- Sgt. Worobey is a § 87(2)(b)-old white male who is § 87(2)(b) and weighs § 87(2)(b). He has blue eyes and brown hair.
- On October 2, 2009, Sgt. Worobey worked an 1140 x 2037 tour in uniform, assigned as the conditions sergeant. He and PO Kazlas were assigned a marked van with RMP #8561-09.

Sgt. Worobey’s memo book entries stated that at 12:10 p.m., one male was stopped at Clifton Place and Marcy Avenue (encl. 7A-D). At 12:14 p.m., a UF-250 was prepared for § 87(2)(b) of § 87(2)(b) for criminal trespassing, and he was frisked. (Sgt. Worobey clarified during his CCRB interview that he believed “§ 87(2)(b) should read § 87(2)(b). On December 3, 2009, Sgt. Worobey was interviewed at the CCRB (encl. 8A-C).

At approximately 12:10 p.m. on October 2, 2009, Sgt. Worobey and PO Kazlas were performing their routine patrol duties in the vicinity of the Louis Armstrong Housing Development when they observed a male—later identified as § 87(2)(b)—between building 366 and building 364 on Clifton Place. They observed § 87(2)(b) from their vehicle as they were on Clifton Place. Between 366 Clifton Place and 364 Clifton Place is an iron gate, which was open, and behind the gate was a playground area that has a sign posted saying, “No Trespassing” and stating that the playground was reserved for the tenants of the Louis Armstrong Development Houses and their guests only. § 87(2)(b) was standing in the playground area, and Sgt. Worobey did not see any children or other people near him. He could not tell what § 87(2)(b) was doing. Sgt. Worobey stated that this area has a high incidence of trespassing and violent crimes, and there have been several shootings in this area in the past year.

PO Kazlas and Sgt. Worobey continued to drive down Clifton Place until they reached Marcy Avenue, which is near the entrance to the Herbert Von King Park. There they observed § 87(2)(b) again—less than a minute after they had observed him in the playground area between the two buildings on Clifton Place. From the front passenger seat, Sgt. Worobey called § 87(2)(b) over to him, saying, “Excuse me sir, let me get a word with you.” Sgt. Worobey stated that he suspected § 87(2)(b) of criminal trespassing, as § 87(2)(b) had been in the

playground area alone, and because of the high incidence of criminal trespassing in that specific area. § 87(2)(b) turned around and began approaching the officers in their vehicle, reaching one hand into his front pants pocket as he approached. Sgt. Worobey said, “Oh, hold on sir, just need a word with you. You don’t have to get anything now.” § 87(2)(b) continued to reach into his pocket. Sgt. Worobey said, “Sir, I’m going to need you to take your hand out of your pocket.” § 87(2)(b) then said that he was just looking for a pen. Sgt. Worobey said, “That’s fine, just please... take your hands out of your pocket.” As § 87(2)(b) continued to reach around in his pocket after Sgt. Worobey had instructed him twice to keep his hands out of his pockets, Sgt. Worobey became concerned that § 87(2)(b) might possess a weapon. For this reason, Sgt. Worobey performed a frisk of § 87(2)(b) around his abdomen and hips. He did not feel any bulges or objects during the frisk, except for the pen that he could feel in § 87(2)(b) s pocket. As § 87(2)(b) had been asking for his pen, Sgt. Worobey reached into § 87(2)(b) s pocket, removed the pen from his pocket and handed it to him. Sgt. Worobey stated that PO Kazlas never frisked or searched § 87(2)(b) and he did not recall them having any physical interaction. He never removed any other items from § 87(2)(b) s pocket.

Sgt. Worobey asked § 87(2)(b) if he was a resident of the Louis Armstrong Houses or if he was visiting someone there. § 87(2)(b) said that he did not live there but he was looking for his friend, but when Sgt. Worobey asked him for his friend’s name or apartment number, § 87(2)(b) did not provide either and instead stated that he did not go into the building. Sgt. Worobey replied that that was true but that § 87(2)(b) could not go behind the fence into the playground if he was not a resident or the guest of a resident. § 87(2)(b) provided his identification to Sgt. Worobey, and Sgt. Worobey ran a warrant check on § 87(2)(b) s name. He was considering issuing § 87(2)(b) a summons, but as § 87(2)(b) told Sgt. Worobey that he was going to be late for his class, so Sgt. Worobey decided not to issue § 87(2)(b) a summons. PO Kazlas and Sgt. Worobey each provided their names and shield numbers when § 87(2)(b) requested them.

Sgt. Worobey was shown the UF-250 report. He explained that “actions indicative of casing a victim or location” was selected because § 87(2)(b) was in the playground area, near the backs of the buildings, without a child. “Actions indicative of engaging in violent crime” was selected because § 87(2)(b) immediately reached into his pockets when Sgt. Worobey asked him to stop.

Subject Officer: PO JOSEPH KAZLAS

- *PO Joseph Kazlas is a § 87(2)(b) -old white male who has brown hair and blue eyes. He is § 87(2)(b) and weighs § 87(2)(b).*
- *On October 2, 2009, PO Kazlas worked a 1200 x 2035 tour in uniform. He was the operator for the conditions sergeant, Sgt. Worobey, and drove a marked van with RMP #8561.*

PO Kazlas had no memo book entries (encl. 9A-B). The UF-250 he prepared states that § 87(2)(b) was suspected of criminal trespassing (encl. 10A-B). The factors leading to the stop are listed as actions indicative of casing a victim or location, actions indicative of engaging in violent crimes, a violence-prone location, an ongoing investigation, a report from a witness, victim, or officer, and a time corresponding to criminal activity. He was frisked due to his refusal to comply with the officers’ directions, his furtive movements, and actions indicative of engaging in violent crimes. He was not searched. PO Kazlas was interviewed on December 8, 2009 (encl. 11A-B).

At approximately 12:15 p.m. on October 2, 2009, PO Kazlas was driving the marked van with Sgt. Worobey near Clifton Place and Marcy Avenue. Sgt. Worobey observed an individual—later identified as § 87(2)(b) behind a gated playground area between two NYCHA buildings (340 and 366 Clifton Place). There is a sign posted that forbids trespassing and specifies that the playground is for the tenants of the Louis Armstrong Houses and their guests only. PO Kazlas stated that the block has a high crime rate, and there have been several shootings in the last year at this location. The playground also has a high incidence of drug activity. The officers observed § 87(2)(b) as he walked out to Clifton Place and headed toward Marcy Avenue.

The officers circled around the block, and then Sgt. Worobey exited the vehicle and said to § 87(2)(b) “Hey, how are you, sir? We just got to talk to you for a second.” § 87(2)(b) immediately began digging frantically into his pockets with both hands. The officers both instructed § 87(2)(b) to keep his hands out of his pockets, but § 87(2)(b) continued to reach into his pockets, yelling that he wanted his pen. The officers again told § 87(2)(b) to keep his hands out of his pockets, saying that he was making them nervous as they did not know what he was reaching for. When asked if he ever saw any bulges on § 87(2)(b) PO Kazlas stated that he saw numerous bulges in § 87(2)(b) pockets. § 87(2)(b) told Sgt. Worobey and PO Kazlas that he wanted their names and shield numbers, and both officers provided them to him.

Sgt. Worobey frisked § 87(2)(b) waistband area and retrieved his pen from one of § 87(2)(b) s pockets. Only at this point did § 87(2)(b) cease from reaching into his pockets. § 87(2)(b) requested the officers’ names, which they provided. The officers asked § 87(2)(b) if he lived in the Louis Armstrong Houses or if he was a guest of a tenant. § 87(2)(b) stated that he was not a resident or a guest but did not offer an explanation for his presence in the playground area. Sgt. Worobey ran a warrant check on § 87(2)(b) as they were planning on issuing him a summons—§ 87(2)(b). The officers asked § 87(2)(b) again why he had been in the gated playground area, but § 87(2)(b) replied that he did not have to tell the officers that. § 87(2)(b) provided his identification to the officers, which listed his address as being on § 87(2)(b). Sgt. Worobey and PO Kazlas considered giving § 87(2)(b) a summons for criminal trespassing, but he told them that he would be late for his class, and so they used their discretion and did not issue him a summons. PO Kazlas never searched § 87(2)(b) or made any physical contact with him. Sgt. Worobey did not search § 87(2)(b) s pockets.

NYPD Documents

- The SPRINT index was obtained, but it did not list any jobs for this incident (encl. 12A-C).
- The Management Information Systems Division records show that Sgt. Worobey ran a warrant check on § 87(2)(b) at 12:06 p.m. on October 2, 2009 (encl. 14A-H). § 87(2)(b)

Status of Civil Proceedings

- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of December 10, 2009, with regard to the incident.

§ 87(2)(b)) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian CCRB History

- This is the second CCRB complaint filed by § 87(2)(b) (encl. 4A). § 87(2)(b)

Subject Officers CCRB History

- Sgt. Erik Worobey has been a member of the service for six years and there are no substantiated CCRB allegations against him (encl. 3A-B).
- PO Joseph Kazlas has been a member of the service for three years and there are no substantiated CCRB allegations against him (encl. 3C).

Conclusion

Identification of Subject Officers

- Sgt. Worobey and PO Kazlas confirmed their interaction with § 87(2)(b)

Allegation Not Pleaded

- § 87(2)(g)

Investigative Findings and Recommendations

Allegation A) Abuse of Authority: Sgt. Erik Worobey questioned § 87(2)(b)
 Barry Kamins' *New York Search and Seizure* states that under the common-law right to inquire, an officer can obtain explanatory information by means short of forcible seizure when he possesses a founded suspicion that criminal activity is afoot (encl. 1A-K). § 87(2)(g)

Allegation B) Abuse of Authority: Sgt. Erik Worobey searched § 87(2)(b)

Allegation C) Abuse of Authority: PO Joseph Kazlas searched § 87(2)(b)

Sgt. Worobey and PO Kazlas denied searching § 87(2)(b) as he alleged. § 87(2)(g)

§ 87(2)(g), § 87(4-b)

Team: _____

Investigator: _____ : _____
 Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date